

Court No. - 32

Case :- WRIT - C No. - 38982 of 2019

Petitioner :- Sanjay Bajaj

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Prince Srivastava

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Shashi Kant Gupta,J.

Hon'ble Piyush Agrawal,J.

This writ petition has been filed, inter alia, for the following reliefs:

"I. Issue a writ, order or direction in the nature of certiorari quashing the recovery citation dated 9.10.2019 issued by the respondent no. 3 demanding Rs. 5,56,711/- + other charges from the petitioner.

II. Issue writ, order or direction in the nature of mandamus commanding and directing the respondents not to take coercive steps against the petitioner."

Heard learned counsel for the petitioner, Sri Pranjal Mehrotra, learned counsel for the Electricity Department and perused the record.

The petitioner is raising dispute with regard to the correctness of the bill raised against him.

It is open to the petitioner to take recourse to the remedy provided to him under Clause 6.5 of the U.P. Electricity Supply code, 2005.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the appropriate

authority/Executive Engineer for redressal of his grievance within two weeks from today, his application may be considered and decided by the said authority in accordance with law within three weeks from the date of receipt of a certified copy of this order by a speaking order after giving opportunity of hearing to the petitioner.

For a period of 40 days, no coercive action shall be taken against the petitioner.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 28.11.2019

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